In The Matter Of:

TARA KATELYN WALSH vs.

STEPHEN GRANT RUSSELL

B E F O R E: HON. ARLENE GORDON-OLIVER

November 29, 2018

La Palabra Court Reporting LLC

175 Main Street

Suite 18, 7th floor

White Plains, NY 10601

Original File LP -154703_Walsh_v_Russell_11-29-2018.txt

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Public copy: the child's legal name is shown as E.V.; private street addresses and a personal phone number are removed. Otherwise unchanged.

STATE OF NEW YORK
COUNTY OF WESTCHESTER: FAMILY COURT
----------x
TARA KATELYN WALSH,

Petitioner,

- vs -

Family Unit: 154703
Docket Nos.:
O-06917-18/18A
O-06917-18/18C
V-07641-18

STEPHEN GRANT RUSSELL,

Respondent.
----------x

111 Martin Luther King Blvd.
White Plains, New York 10601
November 29, 2018

B E F O R E: HON. ARLENE GORDON-OLIVER

A P P E A R A N C E S:

LISA S. ANTONCIC, ESQ., Attorney for Petitioner
JASON ANDREW ADVOCATE, ESQ., Attorney for Respondent
TARA K. WALSH, Petitioner
STEPHEN G. RUSSELL, Respondent (Via Telephone)

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NO WITNESSES OR EXHIBITS
PETITIONER

Witness	Direct	Cross	Re Direct	Re Cross

RESPONDENT

Witness	Direct	Cross	Re Direct	Re Cross

E X H I B I T S

PETITIONER

Exhibit No.	Description	ID	Evidence

RESPONDENT

Exhibit No.	Description	ID	Evidence

[Audio CD, counter 10:45:03]

COURT OFFICER: Your Honor, this is cases six through nine today's calendar in the matters of Walsh and Russell, Family Unit Number 154703.

Counsel, your appearances for the record.

MS. ANTONCIC: Lisa Antoncic, Eight Madison Avenue, Second Floor, Valhalla, New York, for the Petitioner, Tara Walsh. Good morning, Your Honor.

THE COURT: Good morning.

MR. ADVOCATE: Jason Advocate, for Katherine Chesnut, Advocate, LLC, 1540 Broadway, New York, New York, for the Respondent, Stephen Walsh -- no, Russell, Russell.

MS. JACKMAN: Good morning, Your Honor. Jennifer Jackman, attorney assigned to represent [redacted] E.V.

THE COURT: Okay, thank you.

Alright, so I asked for an attorneys' conference. I just need to wrap my arms around where we are. I received papers today, but this matter was on for today for the Order to Show Cause and I have the cross-motion.

MS. ANTONCIC: Yes, Your Honor.

THE COURT: And I think the request that all papers be filed by the 26th and the replies.

MS. ANTONCIC: Well, Your Honor, I had filed my cross-motion and Opposition on November 15. And then according to the scheduling Order, Mr. Advocate was to file

a reply to his Order to Show Cause by Monday, which I received on Monday, but that didn't allow for time for a response to my -- for a reply to my --

MR. ADVOCATE: Your Honor?

MS. ANTONCIC: Can I just finish please?

MR. ADVOCATE: Yes?

MS. ANTONCIC: -- a reply to my cross-motion. My cross-motion actually asked for Opposition papers seven days prior to the return date. I didn't get them seven days prior, so, you know, we rushed to prepare it. And quite frankly, his Opposition to my cross-motion is untimely.

THE COURT: Alright, no, I mean --

MR. ADVOCATE: But I'm not going to object to her papers being late, Your Honor.

THE COURT: One second. And I'm not going to -- the reason for my question is not to say papers are untimely.

MS. ANTONCIC: Okay.

THE COURT: I got everything. I just want to know if everything is submitted now because I'm losing track of (inaudible) because, no, you have a cross-motion.

MS. ANTONCIC: Yes, Your Honor.

THE COURT: So, therefore, Mr. Advocate, you need to respond to the cross-motion.

MS. ANTONCIC: He did, Your Honor.

THE COURT: You did?

MR. ADVOCATE: We did.

THE COURT: When?

MR. ADVOCATE: I think everything's responded to now.

THE COURT: Wait, wait, so that's why I'm trying to figure out what I have here now.

MS. ANTONCIC: But on Monday, Mr. Advocate submitted Opposition to my cross-motion as well as a Reply to his Order to Show Cause and to the --

THE COURT: I don't have it.

MR. ADVOCATE: You don't have it?

THE COURT: You filed it?

MR. ADVOCATE: We overnighted it by FedEx.

THE COURT: By FedEx -- and you filed it, Mr. Advocate?

MR. ADVOCATE: Yeah, we gave it to a service to file. I can -- I'll --

THE COURT: Alright, one second, let me just see. This is why I brought you in because I don't know if I have everything.

(Pause)

MR. ADVOCATE: I have an extra copy here if you need it, Your Honor.

THE COURT: (Inaudible). Let me see. I have Ms. Jackman's. I have the cross-motion. Are you sure it was filed? He filed it on Monday? You filed it then?

MR. ADVOCATE: When did we file it?

MS. ANTONCIC: No, Your Honor, I believe it was filed on Tuesday.

THE COURT: Tuesday? So, just -- I don't know where we look it up from. No, don't look at that copy, just check to see if it's in USCM -- USCM file.

MR. ADVOCATE: Judge, if you need to, I can bring that downstairs and (inaudible).

THE COURT: Well, that's what I was going to -- if we don't see it here that means that whatever service you hired to do it might not have done it.

MR. ADVOCATE: Okay. Sometimes they --

THE COURT: Can you do it by date to see if anything was filed Monday or Tuesday?

COURT CLERK: (Inaudible).

THE COURT: No, I have that.

COURT CLERK: (Inaudible).

THE COURT: No.

COURT CLERK: (Inaudible).

THE COURT: Okay, fine. So, Mr. Advocate --

MR. ADVOCATE: Yeah, I'll bring that downstairs and then I'll file it.

THE COURT: Bring down this downstairs and then you're going to need to supply (inaudible) set. You don't have another set?

MR. ADVOCATE: Not on me. I'll FedEx a copy up to you tomorrow -- today actually. You'll get it tomorrow.

THE COURT: Okay, that's why I -- I mean just so that we're -- where everything was and what paperwork I still needed to get from the attorneys.

Okay, so everything's fully submitted now?

MS. ANTONCIC: Yes, Your Honor. Just administratively --

THE COURT: Yes.

MS. ANTONCIC: I just wanted to ask; the Order appointing Dr. Griffin has not yet been signed, so Ms. Jackman kindly gave me her copy. If I could have that for the Court's -- it was filed with Notice of Settlement November 15 and it was filed on November 5.

THE COURT: Notice of Settlement -- so the settlement date was the 15th?

MS. ANTONCIC: Yes, Your Honor.

THE COURT: No objections, so I could go ahead and have that entered?

MS. ANTONCIC: Yes, it was on consent, Your Honor.

THE COURT: Okay, alright.

MR. ADVOCATE: Which one was it?

MS. ANTONCIC: The Griffin Order.

MR. ADVOCATE: Oh, yeah, okay.

THE COURT: Okay, fine. So, is that the copy that I could sign?

MS. ANTONCIC: Yes, Your Honor. I can hand that up.

THE COURT: Please.

(Handing document to the Court)

MS. JACKMAN: And just for administrative purposes, we had agreed on private pay for myself in this case. I did submit an Order to the parties to sign on off on. I don't think that I got that back. So, if I could just give you a copy, you can sign that, and then I can hand it up to the Court today.

THE COURT: Right. Because I think I already approved that.

MS. JACKMAN: Yes.

MS. ANTONCIC: Yes.

MS. JACKMAN: On consent.

THE COURT: Right. Okay. And this is the -- okay, you're going to hand that up also.

(Handing document to the Court)

MR. ADVOCATE: Your Honor?

THE COURT: Yes?

MR. ADVOCATE: Would it be possible, with respect to this Order regarding the private pay for Ms. Jackman, can you just order it. Technically, we didn't agree to the 100 percent on his side. The Court ordered it.

THE COURT: So, what is that that you have in your hands now?

MR. ADVOCATE: This says that I'm agreeing to approve just to the form and the content. It makes it seems like we're agreeing to it rather than just having the Court order it.

THE COURT: Then, fine, I'll just order it.

Ms. Jackman, did you hear the comment from counsel?

MS. JACKMAN: Yes, that's fine.

THE COURT: Okay? So, no signatures of the parties are necessary 'cause any objection I think I overruled it.

MR. ADVOCATE: Yes, you did.

MS. JACKMAN: Exactly, yes, right.

THE COURT: So, (inaudible).

Alright, so what else do you have as far as housekeeping 'cause I think now I have all the -- no, I don't have Mr. Advocate's, but I will make a note that you're going to be sending -- you have to send copies.

MS. ANTONCIC: The only other housekeeping

matter, Your Honor, is I note that Mr. Russell is not here.

THE COURT: He is on the phone. I only wanted an attorneys' conference right now.

MS. ANTONCIC: No, I understand.

THE COURT: So, I'm going to bring the parties in and get them on the phone.

MS. ANTONCIC: But I just wanted to put on the record my objection to him appearing by phone. I did not receive a copy of the telephonic request. And the reason for my objection, Your Honor, is the last time we were here he did not appear. He submitted a doctor's note --

THE COURT: Right.

MS. ANTONCIC: -- after the fact. And given his drug test result, which the Court noted at the last appearance, was quite alarming. It would've been nice if he was here so that we could get a second test; particularly, given that he has not taken part in any visits.

THE COURT: Okay, so here's what we'll do. That should be put on the record when he's on the phone.

MS. ANTONCIC: Okay, fine.

THE COURT: Okay, so just hold that comment.

MS. ANTONCIC: Okay.

THE COURT: He needs to hear that from you and then any response from his counsel. Alright, so I think

the housekeeping matters are done.

MR. ADVOCATE: Yeah. And just one thing, is it possible that we can get the drug test results from last time? Can we get copies of those?

THE COURT: The Court doesn't normally give those out. Why do you need it?

MR. ADVOCATE: Just that you know since there's issues about it, I'd like to see what the report said.

THE COURT: I put it on the record what it said.

MR. ADVOCATE: I know. It's so much easier --

THE COURT: Well, this is not something that the Court gives out.

MS. ANTONCIC: And respectfully, Your Honor, now that Dr. Griffin has been appointed I'm sure that he's going to issue a detailed report as to what his analysis of those findings and subsequent findings will be.

THE COURT: Right.

MR. ADVOCATE: Your Honor, can I ask a question?

THE COURT: Sure.

MR. ADVOCATE: This is just -- I mean I was only curious, what was the date? Did she do the testing on the same date that he did?

THE COURT: Yes.

MS. ANTONCIC: Yes.

MR. ADVOCATE: Because it was strange because you

know he was there. They was shutting down the office and she left the building, so I don't know if she --

THE COURT: No, she went downstairs.

MR. ADVOCATE: And then she came back up?

MS. ANTONCIC: Yes.

THE COURT: Men do it upstairs; ladies downstairs.

MR. ADVOCATE: He didn't see her.

THE COURT: Do worry about that.

MR. ADVOCATE: I'm just curious.

THE COURT: Probation has them go different places.

MR. ADVOCATE: Gotcha.

THE COURT: Okay, so she didn't leave. She went to where she needed to go. Alright, anything else? Alright, so let me get the parties in.

[Telephone recording]

MR. ADVOCATE: Your Honor, I have his number, if you need it?

THE COURT: Okay.

MR. ADVOCATE: It's [redacted].

THE COURT: Okay, that's the number we have?

FEMALE SPEAKER: Yeah.

[Telephone ringing]

MR. RUSSELL (Via Telephone): Hi, this is Steve

Russell.

COURT OFFICER: Counsel, please stand.

THE COURT: Mr. Russell --

[Off the record]

[Time noted 11:08:39 a.m.]

[On the record]

[Time noted 11:08:50 a.m.]

COURT OFFICER: Your Honor, this is second call on cases number six through nine on today's calendar in the matters of Walsh and Russell, Family Unit Number 154703.

Both parties please raise your right hand. Ms. Walsh? Mr. Russell?

Ms. Walsh, do you swear or affirm to tell the truth?

T A R A W A L S H, a witness herein, was examined and testified as follows:

MS. WALSH: Yes, I do.

COURT OFFICER: For the record, state your name and address, unless your address is confidential.

MS. WALSH: Tara Walsh, [redacted], Chappaqua, New York 10514.

COURT OFFICER: Mr. Russell, raise your right hand.

Do you swear or affirm to tell the truth?

S T E P H E N R U S S E L L, a witness herein,

was examined and testified as follows:

MR. RUSSELL (Via Telephone): I do.

COURT OFFICER: For the record, state your name and address, unless your address is confidential.

MR. RUSSELL (Via Telephone): Stephen Grant Russell, [redacted], San Francisco, California 94105.

COURT OFFICER: Counsel, I'm going to remind you that you're still under oath and for the record, your appearance remain the same. You can be seated.

THE COURT: Okay, thank you parties.

Counsel for the Petitioner had a comment to make regarding Mr. Russell's appearance by telephone today and then Mr. Advocate I'll give you an opportunity to respond. Go ahead, counsel.

MS. ANTONCIC: Thank you, Your Honor. I object to Mr. Russell appearing by phone today on behalf of my client. As the Court will recall at the last court appearance, he did not appear due to an illness and he is not here again today.

The last time he did appear he was -- the Court directed him to do a random drug test, which, as the Court was well aware, he tested positive to a number of different substances and his presence -- or his absence rather today is suspect in light of the drug test and suggested that

he's trying to avoid a drug test.

So, I would object to him having the benefit of appearing by telephone; particularly, given I did not get notice and given the drug test that -- which had very disturbing results.

THE COURT: Yes, Mr. Advocate?

MR. ADVOCATE: Your Honor, the drug test did not have very disturbing results. The realty is that it turned up certain substances for which he had prescriptions. The reason that there was a drug test in the first place was because of allegations by the Petitioner that my client used cocaine. There was no cocaine found in the drug test and I think that puts to lie the notion that he has a drug problem, and we presented to the Court all of the prescriptions that he.

That is not why he wants to appear by telephone. He wants to appear by telephone because he is 3,000 miles away and coming back forth for a court appearance is extremely disruptive, so this is a rather typical request that's made in cases. And we should remember a little bit that we're here in the first place because there was an existing California action in which the Petitioner took the child, ran to New York, and started a case here and now she's trying to force him to come here.

It seems like the reason that she wants him here

is to be much more coercive. If the issue is one of simply we need to do further drug testing, we can find a court-approved center in California that he can go to and get a drug test and she can do the same here or the next time he's here, if Your Honor is going to require a New York facility, we could have him come and appear by -- you know appear for the purposes of a drug test.

THE COURT: Okay. I think what counsel's saying is that the non-appearance, albeit, approved by the Court, doesn't lend itself to a random drug test that I could order today on both parties without them knowing that that's going to happen. But in any event, I think -- go ahead, Ms. Jackman.

MS. JACKMAN: I'm also concerned that Mr. Russell isn't here, but more so because since I've been on this case I think -- you know back in August Mr. Russell indicated that he would set up residence here and he would be here to visit with the child. And so even if he does not intend to set up a residence here any more it seems that you know coming to New York to appear for the court dates would at least give him an opportunity to see the child and he hasn't seen the child in months now.

THE COURT: Okay, so Ms. Jackman, that's something else that you're raising that I was going to get to as far as how the visits were going. Is there any other

issue regarding the non-appearance now?

MS. JACKMAN: No, Your Honor.

THE COURT: No? Okay, fine. Alright, so Mr. Advocate, what I'll tell -- Mr. Russell you have a lot of advance notice of these hearings, sir. And I know that you originally filed your case in California, but if you recall, it was both myself and California judge that determined that New York was going to be the jurisdiction for these proceedings. And, therefore, I don't think you can say, Mr. Advocate that your client's been forced to come here. It was two judges who got together and determined where this was going to happen.

Yes, Petitioner did file, but we made an ultimate decision (inaudible) on where this was going to take place, so no blame can be laid at the Petitioner's feet. Okay.

So, let's move on. How are the visits going?

MS. ANTONCIC: Your Honor, there hasn't been one visit since the last court appearance. After the last court appearance where the Court ordered that my client not be present, even for the transition --

THE COURT: Yes.

MS. ANTONCIC: -- portion of it, Mr. Russell sent a scathing email to Ms. Walsh. A harsh email which is attached to our cross-motion, basically, threatening to report her to a professional review board, demanding a

refund, and saying that he will not submit to visits because -- and that, quite frankly, is the basis for our cross-motion for counsel fees on the motion because at that point when Mr. Russell knew that he wasn't going to submit to any supervised visits his request for unsupervised access became frivolous because the Court has made it abundantly clear that it would not consider unsupervised access until the Court had a mutual report by which to evaluate whether or not that was even possible.

THE COURT: Alright, stop for second.

Mr. Advocate, what is your client doing?

MR. ADVOCATE: After the last court date, we read him the report from Delia (ph) and he was very disappointed in the report. I will say that he feels very surprised by it and very hurt by what she put in the report and the attacks that he feels she made on him. At this point --

THE COURT: You mean the report --

MR. ADVOCATE: The report that Delia (inaudible).

THE COURT: One report.

MR. ADVOCATE: Right, the one report.

THE COURT: What were the attacks?

MR. ADVOCATE: Essentially, you know the -- Delia said that the whole family history out of --

THE COURT: Okay, but what were the attacks? You mean because of the allegations that the Petitioner had

made that she put in the report?

MR. ADVOCATE: He felt that the description of what occurred was not all accurate.

THE COURT: No, no, description -- go ahead, please.

MR. ADVOCATE: Oh, the child you know not doing well with him. And you know there were a lot -- even in minutia in that report that he felt were constant (inaudible).

THE COURT: Tell me which part of it. Mr. Russell is on the phone. You want to tell me which part of it because I read the report and I didn't see any attacks. I only saw a report of -- and if he felt that the report didn't accurately reflect what transpired, then the proper way to have dealt with it was for him to report that to you and for us to deal with it here and have Ms. Farkinson (ph) here on the record as opposed to writing her a letter that -- I haven't looked at it yet. I don't know what it says.

MR. ADVOCATE: I'll tell you the more pressing issue that he had was there's no parallel here. That he does not see any reason why the mother, who has her issues, is being supervised by her mother and occasionally there are nannies in the house watching the child.

THE COURT: Stop. Mr. Advocate, you're not dealing with the issue that I'm dealing with. Your client

and whatever he wrote to Ms. Farkinson and the detail -- what were the attacks. What were the attacks?

(Everyone speaking at the same time)

THE COURT: Let me tell you the reason why I'm raising it is because one of the things I intended to do when I realized that the parties somehow hadn't -- the Order that I entered wasn't followed I actually toyed with the idea of sus sponte having another person supervise and I asked on the record whether or not that was what you were looking to do and I was told no.

So, for me to hear that your client went ahead after the hearing and did something -- I assume this was like unwarranted because I want to be the person who deals with issues with any professionals that I order to do anything in this Court, not the litigants.

MR. ADVOCATE: Let me address that for one second. Your Honor did say that on the record. And I will say that I made a record. We should've done that. We should've taken you up on that. It was not a wise move on my side not to have done that. I should've listened to you and I think my client feels that he should have listened as well. He's seen the transcript and --

THE COURT: He should've listened to?

MR. ADVOCATE: You on that one.

THE COURT: Yeah, so why write the letter? Why

do that?

MR. ADVOCATE: I will address -- you asked me a direct question about some of the -- about some what he perceived as attacks in the report. I'll give you one example, for instance, on page 3 Ms. Farkinson wrote "As we got closer to the home the Respondent" -- she was walking up to the home.

THE COURT: Yes, I read that.

MR. ADVOCATE: Right. "As we got closer to the home, the Respondent began walking towards us."

THE COURT: Yes.

MR. ADVOCATE: "This clinician observed the hands of the subject child began to shake. She became upset and began crying."

THE COURT: What's your attack? What's the attack?

MS. JACKMAN: That's a character --

THE COURT: Stop, Ms. Jackman.

What's the attack on your client?

MR. ADVOCATE: That's a characterization of the child shaking in fear.

THE COURT: What's the attack on your client?

MR. ADVOCATE: That is an attack.

THE COURT: No. She was describing what the baby was doing.

MR. ADVOCATE: Listen, he says that didn't -- (A) it didn't occur.

THE COURT: That's different if he's disagreeing, but that's not an attack.

MR. ADVOCATE: Okay, maybe we're -- maybe I'm mischaracterizing.

THE COURT: Fair. Where's that letter? I want to see what he wrote to Ms. Farkinson.

MS. ANTONCIC: Your Honor, it's an exhibit to our cross-motion. I'm happy to read it.

THE COURT: Go ahead.

MR. RUSSELL (Via Telephone): I'm sorry. I'm breaking up a little bit for me. (Inaudible).

THE COURT: And I did not rebuke Ms. Farkinson.

MR. ADVOCATE: What was that again?

THE COURT: Exhibit N to the motion (inaudible) the cross-motion.

Mr. Advocate, is the first time you're seeing this email?

MR. ADVOCATE: No, no, I've seen it before, Your Honor. I just haven't read it in a few weeks.

THE COURT: Read it.

MR. ADVOCATE: I am. You know, give me 30 seconds. Yes.

(Pause)

MR. ADVOCATE: I read it, Your Honor. Yes, I think the tone may have been a little bit hard, but --

THE COURT: Seriously.

MR. ADVOCATE: The tone was maybe not appropriate.

THE COURT: Tone? He gets up and he thinks he's going to tell Ms. Farkinson that she's no longer going to be paid by him and I directed it and that she's no longer go to be the supervisor. Seriously? Who does your client think he is?

MR. ADVOCATE: There is a Court Order out there that he's required to pay. We're aware of that, Your Honor.

THE COURT: Who does he think he is? I mean he's on the phone.

Mr. Russell, who do you think you are, going in on a professional who I appointed in this case? Anything that needs to be done with respect to professionals I will take care of that matter, sir, not you.

Counsel, (inaudible) conference settlement. Get Mr. Russell off the phone. Please, ma'am, step out. Yeah, we'll call you back, Mr. Russell.

Okay, we're still on the record. Anybody want to go off the record? Yes? Off the record.

(Off the record)

(Time noted 11:22:45 a.m.)

(On the record)

(Time noted 11:36:29 a.m.)

COURT OFFICER: Mr. Russell, we're back in the courtroom. We're on the record.

Your Honor, this is the third call on cases six through nine on today's calendar in the matters of Walsh and Russell, Family Unit Number 154703.

I want to remind everyone you're still under oath. And for the record the appearances are the same. Everyone can be seated.

THE COURT: Alright, thank you.

We had a conference, Mr. Russell, on the issue regarding your letter to Ms. Farkinson and what we need to do going forward. I won't tell you the substance of what was discussed, but we have decided that the parties are going to get together -- your attorneys, the attorneys here to determine who the new supervisor will be in the event, sir, that you determine that you will have supervised visits go forward and actually, I'm ordering that. And if it's your wish not to participate in supervise visits, then so be it. Do it at your own peril, but I will still keep my Order that there're going to be supervised visits for both parties and I'll be told later, Mr. Advocate, as to who you and the AFC and counsel for Petitioner agree.

MR. ADVOCATE: Yes.

THE COURT: That will be suited to do the supervised visits, but that's going to continue.

I also discussed the application for Petitioner's counsel. I'm awarding 15,000, the fees that were previously requested. Now there's additional fees pending and requested. At this time, I'm only doing 15,000 and that's subject to Mr. Advocate said that he wanted to get a copy of your bill.

MS. ANTONCIC: I believe he said he wanted just a statement on the record, but I'm happy --

THE COURT: Okay.

MS. ANTONCIC: -- to do either or both.

MR. ADVOCATE: Judge, I'd like the bills as well.

THE COURT: Right.

MS. ANTONCIC: That's fine. That's fine.

THE COURT: The bills as well as a statement on the record as far as what you're up to so far.

MS. ANTONCIC: Approximately, 40,000, Your Honor. And if I had to estimate rough ballpark, I would say about 65 percent of that is related to this custody proceeding and the remaining to the child support and the family offense petition, which was resolved. So, I will submit redacted invoices to Mr. Advocate and the Court, as well as proposed Order and for the 15,000 to be payable -- I

believe Mr. Advocate and I discussed December 30 -- with leave to --

THE COURT: December 30 for what?

MS. ANTONCIC: For the 15,000.

THE COURT: Okay.

MS. ANTONCIC: And with leave to apply for more at the conclusion of the case. And of course, that's separate and apart from the fees on this Order to Show Cause --

THE COURT: Right.

MS. ANTONCIC: -- and our cross-motion.

THE COURT: Okay, alright. And you'll submit an Order to me on the new supervisor?

MR. ADVOCATE: Yes.

THE COURT: Okay.

MR. ADVOCATE: Judge, because my client -- sorry.

THE COURT: Okay, that's three or four months of -- the fact-finding. The forensics we'll do, but -- yes. Okay, Mr. Advocate?

MR. ADVOCATE: Judge, I just want to -- because my client's not here and some of this was off the record, I just want to make it clear for him then.

I did argue with the Court that we believe that most appropriate thing to do would be to let go of the supervisor completely and let him be supervised in the same

manner as the wife is -- I should say the mother, Ms. Walsh -- with respect to having her parents or a nanny babysit. We discussed that for (inaudible) and you said that you're not going to do that. That you want to continue with supervision, but we'd get a new supervisor on the case.

So, I just want to make it clear to him that we fully discussed the issue and we had substantial argument about it.

THE COURT: Right. And I can tell you something, Mr. Russell; I have misgivings, sir, about your ability to conduct yourself in an appropriate manner. That letter to Ms. Farkinson that was just absolutely, absolutely inappropriate and I already told your attorney off the record what I really felt, okay, but on the record I'm telling you it was really inappropriate for you to do that.

If you have any issues, you are to discuss it with your attorney. Your attorney will bring them to the Court's attention or maybe your attorney will discuss it with other counsel and a letter to Ms. Farkinson would go out, but for you to have done that on your own without advising your attorney prior to -- as you did, after that is inappropriate and please don't try that again in my Court, sir. I'm warning you. Do not try that again to circumvent any of my Orders, to approach any professional

that I've appointed in such a manner.

Mr. Russell, do you hear me?

MR. RUSSELL (Via Telephone): I do hear you. The instruction not to communicate with anyone you appoint or not to -- what, more specifically, not write letters of this tone. What is the specific order?

THE COURT: Sir, the only thing that you're allowed to do -- if I set up a supervisor, the only thing you're allowed to do is to arrange for when the supervisor is going to be with you and the subject child and that's the extent of the communication, okay, just dealing with issues regarding timing, days, whatever else, nothing else. And especially not --

MR. RUSSELL (Via Telephone): Including payment.

THE COURT: You can deal with that with your attorney.

MR. RUSSELL (Via Telephone): (Inaudible).

THE COURT: You can deal with that with your attorney. That goes for your attorney, okay. And especially, after a court hearing where you weren't even present, sir, and your attorney relayed back to you certain information. For you to take that information and use it against a professional, who also wasn't at the hearing inappropriate -- absolutely inappropriate. Okay.

And to try to paraphrase anything that I've done

or to interpret anything I've said on the record to use it against any professional highly inappropriate. Your communication with any professional is going to be strictly, strictly only regarding setting appointments, timing and that's it, nothing else.

MR. RUSSELL (Via Telephone): And then everything that went through counsel then goes through you or counsel is permitted to speak to the professional.

THE COURT: Counsel knows how to conduct himself. If he feels that there is something that is terribly amiss, he'll know how to approach the Court and I'm sure counsel would never, ever have done that to a professional. Okay. So, Mr. Advocate will know what is proper.

MR. RUSSELL (Via Telephone): Your Honor, I understand your Order.

THE COURT: Thank you. Yes?

MS. ANTONCIC: Just like a couple of housekeeping items that I just remembered.

First, with regards to the communication issue, Your Honor, I would ask that only communication with the supervisor all counsel be copied on because there was no directive as to communications with Ms. Farkinson in your Order. And I understand that counsel has been communicating with her, not copying counsel. I'm not raising any objection to it, but just going forward I think

everyone should be copied.

THE COURT: But it won't be with Ms. Farkinson any more.

MS. ANTONCIC: Right.

THE COURT: So, what are you suggesting?

MS. ANTONCIC: But with the new supervisor.

MR. ADVOCATE: But I don't believe that's true. I don't believe -- I had no communication with Ms. Farkinson. You know the one time -- the couple of times I tried to reach her to get the initial meetings going she never responded to me, so that's all.

MS. ANTONCIC: Okay, alright, that's fine.

MR. ADVOCATE: But he saw those emails and he expected a response and I didn't get a response.

MS. ANTONCIC: Okay, alright, so just going forward if we could all be copied.

And the other issue, Your Honor, is Dr. Hammelwitz (ph), the Court just signed an Order for a forensic evaluation and my client made an Intake appointment for December 12 and Dr. Hammelwitz indicated that he would only go forward with the appointment if payment was made by Mr. Russell, so I'm just asking him to make payment.

MR. ADVOCATE: My client is going to be paying very quickly.

MS. ANTONCIC: Okay.

MR. ADVOCATE: I just sent him the Order the other day. He wants to move forward with that very quickly.

MS. ANTONCIC: Okay.

THE COURT: Okay, you sent him the Order that wasn't signed yet?

MS. ANTONCIC: No.

MR. ADVOCATE: No, I sent him the Order that was signed. That's not correct. You had actually signed the Order for Dr. Hammelwitz.

THE COURT: We all did.

MR. ADVOCATE: We all signed it.

THE COURT: Okay, thanks. So, this Order is for Dr. Griffith?

MR. ADVOCATE: Right.

THE COURT: Okay, thanks.

MR. ADVOCATE: We got the Order for Dr. Hammelwitz and he's contacted him you know today to start discussing moving that forward.

THE COURT: Okay, thank you.

MR. ADVOCATE: Dr. Hammelwitz might need a retainer agreement from him and then he has to sign it and give the retainer money, and he would do that very quickly.

THE COURT: Okay.

MR. ADVOCATE: I've got two little, small issues as well, Judge.

THE COURT: Okay.

MR. ADVOCATE: With respect to the supervisor, I'd like the Court to limit someone -- you know from both parties discussing all the history. We don't need a repeat of what happened to deal with everything.

THE COURT: Right, because I don't want any history told to the supervisor. The supervisor is there to just observe --

MR. ADVOCATE: Great.

THE COURT: -- the visits with baby and the parents, so any discussion of any history not needed, not warranted, and somewhat inappropriate.

MR. ADVOCATE: And the very last issue that I just had was when we proceeded with Dr. Hammelwitz next and he's going to go to forensics. One of the psychologist or psychiatrist the parties have seen in San Francisco was a doctor by the name of Dr. Gopal (ph). Dr. Gopal saw both of them and provided some -- you know some medical advice to both of them.

This is obviously an important collateral witness. My client has provided Dr. Gopal's with a HIPAA release so that he could speak to the forensic, but I've been advised that Ms. Walsh has not provided the HIPAA and

that's going to impede the work of the forensic and we'd like to have that done.

MS. ANTONCIC: Your Honor, part of our reply submitted today attached is a complaint to the Medical Review Board as to Dr. Gopal for inappropriate behavior during Ms. Walsh's consultations with him. So, as we have said repeatedly throughout, whatever Dr. Hammelwitz indicates that he needs my client will provide. So, I don't want there to be a presumption that Dr. Gopal is going to be interviewed. If during the course of the forensic evaluation, Dr. Hammelwitz deems that appropriate, my client will then provide whatever authorization is necessary so long as whatever information he receives is confidential and by that I mean for the Court and counsels' eyes only, not to be viewed by the parties. That has always been our position, Your Honor.

MR. ADVOCATE: And of course, the (inaudible).

THE COURT: (Inaudible) Dr. Gopal, I'm not sure. Is it that you're not signing the release because there's a report he made?

MS. ANTONCIC: No, we're not signing the releases, but, sus sponte -- I mean if -- I don't know that Dr. Hammelwitz needs those records.

THE COURT: Okay, so that was not coming from Dr. Hammelwitz?

MR. ADVOCATE: No, he hasn't, moving forward, but with that understanding from Ms. Antoncic that her client will provide the HIPAA when requested by Dr. Hammelwitz.

MS. ANTONCIC: "If" -- "if" requested.

MR. ADVOCATE: If requested.

MS. ANTONCIC: If requested, "If."

MR. ADVOCATE: "If." "If." Of course, the doctor, I'm sure, is going to request it. So, we will -- that's fine with us as long as we have it on the record and I appreciate that from Ms. Antoncic.

MS. ANTONCIC: And it's confidential -- subject to the confidentiality as well.

MR. ADVOCATE: Of course. All medical records are treated with the same confidentiality as a report.

THE COURT: Absolutely. Alright, next date, March 7.

MS. JACKMAN: That's fine.

THE COURT: 10:00 a.m.?

MS. ANTONCIC: March 7 at 10:00 a.m. is fine. And this is for a conference?

THE COURT: Yes.

MS. ANTONCIC: And Your Honor, I assume there's still a decision on the Order.

THE COURT: yes, the decision I'll --

MS. ANTONCIC: Okay, thank you.

THE COURT: Yes, by then you should have the decision.

MR. ADVOCATE: What time is the next hearing, Your Honor?

THE COURT: 10:00 a.m.

MS. ANTONCIC: 10:00 a.m.

THE COURT: Mr. Russell, you need to appear on that date, March 7, as it is a long way away, so I sure you can afford to make that trip in, sir.

MR. RUSSELL (Via Telephone): Can you (inaudible) up on the last part; what is the date?

THE COURT: March 7 at 10:00 o'clock.

MR. ADVOCATE: I'll give you the date.

THE COURT: Okay, thank you parties.

MR. ADVOCATE: Thank you.

THE COURT: Okay, parties are excused.

MR. RUSSELL (Via telephone): (Inaudible).

THE COURT: Your attorney will call you.

[PROCEEDING CONCLUDED]

[Audio CD, counter 11:58:21]

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C E R T I F I C A T E

I, Gloria C. Hooker, certify that the foregoing transcript of proceedings in the Family Court of the State of New York, County of Westchester, in the Matter of Tara Katelyn Walsh vs. Stephen Grant Russell, Docket Numbers O-06917-18/18A, O-06917-18/18C, and V-07641-18, was prepared using the required transcription equipment and is a true and accurate transcript of the recording. Due to the judge's, attorneys', and parties' microphones not working properly, several inaudible segments are contained in the aforementioned transcript and are noted as such.

Signature Gloria Hooker, CT

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Date: December 5, 2018